

ZimHomes Residential Lease Agreement

This template is a starting draft for residential rentals in Zimbabwe. It should be reviewed by a qualified Zimbabwean legal practitioner before live use.

1. Parties

This Residential Lease Agreement is made on [Agreement Date] between:

Landlord: [Landlord Full Name / Company Name]

National ID / Registration Number: [ID or Registration Number]

Address: [Landlord Address]

Phone: [Landlord Phone]

Email: [Landlord Email]

and

Tenant: [Tenant Full Name]

National ID / Passport Number: [Tenant ID or Passport]

Address: [Tenant Current Address]

Phone: [Tenant Phone]

Email: [Tenant Email]

The Landlord and Tenant are collectively called the Parties.

2. Property

The Landlord leases to the Tenant the residential property described below:

- Property address: [Full Property Address]
- City: [City]
- Suburb / Area: [Suburb]
- Property type: [Room / Cottage / Flat / House / Other]
- Bedrooms: [Number]
- Bathrooms: [Number]
- Included fixtures, fittings, and furniture: [List Items]

The Tenant confirms that the property will be used only as a private residence unless the Landlord gives written consent for another use.

3. Lease Term

The lease starts on [Start Date] and ends on [End Date], unless terminated earlier in accordance with this Agreement.

If the Tenant remains in occupation after the end date with the Landlord's consent, the tenancy will continue on a month-to-month basis unless the Parties sign a new written agreement.

4. Rent

The monthly rent is USD [Amount] or the Zimbabwe-dollar equivalent agreed by the Parties in writing.

Rent is payable on or before the [Day] day of each month by:

- Payment method: [EcoCash / OneMoney / Bank Transfer / Paynow / Cash / Other]
- Payment account or reference: [Payment Details]

Rent paid late may attract a late payment charge of [Late Fee], if lawful and agreed by the Parties.

5. Deposit

The Tenant must pay a security deposit of USD [Amount] before occupation.

The deposit may be used for unpaid rent, unpaid utilities, damage beyond fair wear and tear, missing items, cleaning costs, or other amounts lawfully owed by the Tenant.

The Landlord must return the remaining deposit balance within [Number] days after the Tenant vacates, after inspection and deduction of any lawful amounts.

6. Utilities and Charges

Unless otherwise agreed in writing:

- Electricity is paid by: [Tenant / Landlord]
- Water is paid by: [Tenant / Landlord]
- Rates / levies are paid by: [Tenant / Landlord]
- Internet / security / other services are paid by: [Tenant / Landlord]

The Tenant must not tamper with meters, prepaid devices, locks, gates, alarms, borehole equipment, solar systems, or other property systems.

7. Inspection and Handover

Before occupation, the Parties should complete and sign a handover inspection checklist recording the property's condition, keys, meters, fixtures, fittings, and furniture.

The Tenant must report defects within [Number] days of occupation. Defects not reported may be treated as having arisen during the tenancy, unless the Tenant can prove otherwise.

8. Tenant Obligations

The Tenant agrees to:

1. Pay rent and agreed charges on time.
2. Keep the property clean, secure, and in reasonable condition.
3. Use the property lawfully and peacefully.
4. Avoid nuisance, illegal activity, excessive noise, or conduct that disturbs neighbours.

5. Not sublet or assign the property without the Landlord's written consent.
6. Not make structural changes, repaint, drill, install fixtures, or alter locks without written consent.
7. Promptly report damage, leaks, electrical faults, plumbing issues, security issues, or maintenance needs.
8. Allow reasonable access for inspections, repairs, valuations, or viewings after reasonable notice.
9. Return the property, keys, remotes, cards, and access devices at the end of the lease.

9. Landlord Obligations

The Landlord agrees to:

1. Give the Tenant peaceful occupation of the property.
2. Ensure that the Landlord has authority to lease the property.
3. Keep structural elements and major systems in reasonable repair, unless damage is caused by the Tenant or the Tenant's visitors.
4. Attend to reasonable maintenance requests within a reasonable time.
5. Respect the Tenant's privacy and give reasonable notice before entering, except in emergencies.
6. Provide receipts or payment confirmations for amounts received.

10. Repairs and Maintenance

The Tenant is responsible for damage caused by the Tenant, household members, guests, employees, pets, or invitees.

The Landlord is responsible for fair wear and tear and major repairs not caused by the Tenant.

Emergency repairs should be reported immediately by phone and confirmed in writing.

11. Pets, Guests, and Occupants

Pets are: [Allowed / Not Allowed / Allowed with written consent only].

The following people are authorised to live at the property:

- [Occupant Name]
- [Occupant Name]

Long-term guests staying for more than [Number] days require the Landlord's written consent.

12. Default

The Tenant will be in default if the Tenant:

- Fails to pay rent or agreed charges when due.
- Breaches this Agreement and fails to remedy the breach after written notice.
- Abandons the property.
- Uses the property unlawfully.
- Causes serious damage or nuisance.

The Landlord will be in default if the Landlord materially breaches this Agreement and fails to remedy the breach after written notice.

13. Termination

Either Party may terminate this Agreement at the end of the lease term by giving at least [Number] days' written notice before the end date.

For a month-to-month tenancy, either Party may terminate by giving at least [Number] days' written notice.

Early termination may require payment of agreed outstanding amounts, reasonable costs, or other lawful charges.

14. Vacating the Property

On vacating, the Tenant must:

1. Remove personal belongings.
2. Clean the property.
3. Repair Tenant-caused damage.
4. Settle rent, utilities, and other agreed charges.
5. Return all keys, remotes, cards, and access devices.
6. Attend a final inspection or allow the Landlord to conduct one.

15. ZimHomes Role

If this lease is facilitated or managed through ZimHomes, the Parties authorise ZimHomes to:

- Record the lease details.
- Collect platform payments where applicable.
- Send reminders and notices.
- Coordinate viewing, inspection, maintenance, and payment records where applicable.

ZimHomes is not a party to this lease unless expressly stated and signed as a party.

16. Notices

Notices may be sent by hand delivery, email, WhatsApp, SMS, or through the ZimHomes platform, using the contact details in this Agreement.

A Party must notify the other Party of any change in contact details.

17. Governing Law and Disputes

This Agreement is governed by the laws of Zimbabwe.

The Parties should first try to resolve disputes through good-faith discussion. If unresolved, the Parties may refer the dispute to mediation, arbitration, a competent court, or another lawful dispute-resolution forum in Zimbabwe.

18. Entire Agreement

This Agreement, including any signed annexures, is the full agreement between the Parties. Any change must be in writing and signed or otherwise clearly accepted by both Parties.

19. Signatures

Signed by the Landlord:

Name: _____

Signature: _____

Date: _____

Signed by the Tenant:

Name: _____

Signature: _____

Date: _____

Witness 1:

Name: _____

Signature: _____

Date: _____

Witness 2:

Name: _____

Signature: _____

Date: _____

Annexure A: Property Condition Checklist

- Walls: [Condition]
- Floors: [Condition]
- Doors and locks: [Condition]
- Windows: [Condition]
- Plumbing: [Condition]
- Electrical: [Condition]
- Appliances: [Condition]
- Furniture: [Condition]

- Keys / remotes / access cards issued: [List]
- Meter readings at handover: [Electricity / Water]
- Photos uploaded to ZimHomes: [Yes / No]